
Appeal Decision

Site visit made on 2 September 2026

by **H Marriott MPlan MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 14th September 2026

Appeal Ref: 6011256

Barn at Poplar Farm, Harps Hall Road, Walton Highway PE14 7DL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr and Mrs B Wicks against the decision of King's Lynn and West Norfolk Borough Council.
 - The application Ref is 25/01774/CU.
 - The development proposed is for the change of use of an agricultural barn to a commercial use for the repair, sale and storage of camper vans and caravans.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. On 17 August 2026, the Government published a revised National Planning Policy Framework (the Framework). This latest version of the Framework has introduced plan-making and national decision-making policies. It is effective from the day of publication. The main parties were given the opportunity to comment on the revised Framework, and any comments received have been taken into consideration.

Main Issue

3. The main issue is the effect of the proposed development on highway safety, with particular reference to the suitability of the surrounding road network.

Reasons

4. Harps Hall Road is a narrow rural route linking St Pauls Road South and Station Road, around 1km east of the A47 and 2km east of Wisbech. It mainly serves sporadic agricultural and residential properties and is subject to the national speed limit. The road is generally straight and bound by grass verges, with bends towards its eastern end near the junction with Station Road. It lacks footways and street lighting reflecting its rural character.
5. There is no dispute between the main parties that the carriageway varies in width and is not always capable of accommodating two-way traffic freely, particularly where larger vehicles are involved. Consequently, drivers must exercise care when passing oncoming vehicles, including avoiding the carriageway edge where possible, particularly where the grass verges are soft and adjoin ditches. During my site visit, traffic volumes appeared to be generally low and the carriageway surface appeared to be in reasonable condition overall. However, the Local Highways Authority (LHA) advises that parts of Harps Hall Road and the surrounding highway network are affected by peat-based soil conditions, resulting

in deformed crowning, longitudinal cracking and undulating surfacing. I observed some of these defects during my site visit, and note the specific examples provided within the LHA evidence. I also observed restricted visibility at the junction with St Pauls Road. Overall, while Harps Hall Road functions adequately for its existing rural role, its physical constraints and those of the wider highway network, indicate a limited ability to accommodate additional traffic, particularly larger vehicles.

6. The appeal site comprises a portal-framed agricultural building (the Barn). It adjoins a similar sized grain store and forms part of a group of agricultural buildings. The proposed development would facilitate the change of use of the Barn for the purchase, repair and refurbishment of second-hand camper vans/caravans for subsequent resale. Sales would be arranged online and visits to the site would be by appointment only. No vehicle display area or sales forecourt is proposed.
7. Access would be taken from an existing farm access onto Harps Hall Road, which leads to a partly unbound and partly concrete-surfaced track, with gates setback from the carriageway. The appellant states that this long-established farmyard entrance has historically served a range of agricultural vehicles, including tractors, trailers, heavy goods vehicles (HGVs) and agricultural machinery. Agricultural traffic would continue to use the access, but the internal track would be divided, with vehicles associated with the proposed use turning shortly after entering the site. Parking and turning space would be provided adjacent to the Barn.
8. While the appellant's Transport Statement (TS) indicates that continued agricultural use of the Barn could generate notable vehicle movements during harvesting and haulage periods, the Barn has largely been unused for around 15 years and the surrounding farmland is now in separate ownership. Although farming activities continue in the area, they are undertaken from elsewhere and are not reliant on the appeal site. Consequently, I am not persuaded that the agricultural fallback identified in the TS represents a realistic prospect, or that historic agricultural traffic provides a meaningful comparison with the proposed development. Instead, the proposal would introduce a new use and additional traffic unrelated to the operation of the surrounding farmland.
9. It is acknowledged that the proposed use would be modest in scale, with one part-time employee, around five camper vans/caravans on site at any one time and approximately 25 sales annually. Nevertheless, vehicle movements would arise from the delivery and collection of camper vans/caravans, potentially involving vehicles towing trailers or low-loaders, together with deliveries of parts and materials, employee travel and visits by prospective purchasers most likely by means of a private vehicle. Given the rural context and existing low traffic volumes, the proposed development has the potential to generate a significant amount of additional movements relative to the existing situation.
10. While the limitations of the local highway network are pre-existing, I am not satisfied that this additional traffic could be acceptably accommodated. The nature of the vehicles associated with the proposed use would be likely to increase occasions where two-way traffic flow is impeded, requiring vehicles to wait or reverse to allow others to pass. Such manoeuvres would be more difficult where larger vehicles, camper vans, caravans or trailers are involved. This would increase the potential for conflict with other highway users, including cyclists and horse riders. Furthermore, the constrained forward visibility on bends would make

reversing manoeuvres more difficult and increase the risk of collisions. Whilst I have taken into account the absence of traffic accident data on Harps Hill Road, such data is only one indicator of highway safety. The LHA with expertise in assessing highways matters, objects to the proposal, and in the absence of substantive evidence to the contrary, I attach significant weight to their finding that the local highway network is unsuited to the additional nature of traffic likely to be generated by the proposed use.

11. While a condition restricting the number of camper vans/caravans on the site at any one time could be imposed, I am not persuaded that such a restriction would overcome my concerns. The identified harm arises principally from the introduction of a new commercial use in the countryside and associated nature and movements of vehicles generated by the use, rather than solely from the number of vehicles stored or being repaired/refurbished on the site. Such a condition would not directly control the frequency or nature of those movements, nor would it prevent towed vehicles or low-loaders associated with the business from using the local highway network.
12. Notwithstanding the appellant's comments regarding whether or not the conditions suggested by the LHA meet the relevant tests, there is no dispute between the main parties that the visibility spays at the site entrance could be acceptable and that adequate parking and turning would take place within the site, ensuring vehicles can enter and exit in a forward gear. However, these matters do not overcome my concerns regarding the suitability of the highway network to accommodate the additional traffic likely to be generated by the proposed use.
13. I conclude that the proposed development would result in an unacceptable effect on highway safety, with particular reference to the suitability of the surrounding road network. In this regard, it would conflict with Policies LP13 and LP18 of the King's Lynn and West Norfolk Local Plan 2021-2040 (2025) which require development proposals to be accessible and to demonstrate they provide for safe and convenient access for all modes. For the same reasons, there would be conflict with the promoting sustainable transport policies of the Framework, including Policies TR3 and TR6.

Other Matters

14. The appellant has drawn my attention to two developments approved on other sites along Harps Hall Road close to the appeal site, including a solar farm¹ which has not yet been constructed, and a floristry business².
15. In the case of the solar farm, despite the significant traffic anticipated during the construction phase, the LHA raised no objection and the Inspector noted that such impacts could be mitigated, including through the provision of passing places and other traffic management measures. By contrast, although the volume of traffic associated with the proposed use would be less, it would not be temporary, would persist for its lifetime and no comparable mitigation is proposed. Even if it was, I have insufficient evidence before me to conclude that similar mitigation would be effective in this case. Moreover, the solar farm was assessed on its own particular facts and circumstances which are unlikely to all be applicable to the appeal proposal.

¹ Council ref: 22/01987/FM and Appeal ref: APP/V2635/W/23/3323065

² Council ref: 22/02067/CU

16. In relation to the floristry business, I have limited information before me regarding the nature or frequency of vehicle movements associated with that use. Nevertheless, it is evident that the characteristics of that proposal differ from those of the appeal proposal before me. For example, the floristry business does not appear to rely on customer visits to the site or the delivery by trailered vehicles or low-loaders. Furthermore, the LHA considered that the fallback position associated with the previous use of the floristry building, made an objection difficult to substantiate. Consequently, neither development provides a direct comparison with the proposal before me and neither provides justification for a different outcome in this appeal.
17. A prior approval application for the change of use of the Barn from agricultural to light industrial use under Class R³ was refused by the Council in 2018⁴. Although the refusal related to the conditions, limitations and restrictions of that permitted development right, the Council stated on its decision notice that, had those matters not arisen, prior approval would have been refused on grounds relating to the transport and highways impacts of that proposal. The appellant also advises that the site benefits from an HGV operator's license for up to five units. However, the LHA explains that such licenses relate to the suitability of the site itself and do not assess the suitability of the surrounding highway network. I have also had regard to the letters of support submitted in respect of the proposal. Nevertheless, these matters do not lead me to a different conclusion on the appeal before me.

Planning Balance and Conclusion

18. Policy S3 of the Framework requires a presumption in favour of sustainable development in line with Policy S5 which relates to development outside settlements. This policy states that only certain forms of development should be approved outside settlements, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national-decision making policies in the Framework.
19. In this case, the proposed development does comprise one of the forms of development listed as being acceptable in the countryside, namely the reuse of an existing building. The proposed development would bring an underused agricultural building back into use and would support the diversification of an existing business based in Wisbech, providing a modest level of employment of benefit to the rural economy. Policy E2 of the Framework states that substantial weight should be given to the economic benefits of proposals for commercial development which allow businesses to invest, expand and/or adapt.
20. Nevertheless, I have found that the proposed development would result in an unacceptable effect on highway safety. This is a matter that results in conflict with the development plan as a whole. Moreover, the circumstances in which the benefits of approving development proposals are likely to be outweighed by adverse effects include situations where the development proposals would fail to comply with Policy TR6 of the Framework, a matter which attracts considerable weight. There is also conflict with the Framework's promoting sustainable transport policies.
21. Taking into account the above conclusions, I find that the benefits of approving the proposed development would be substantially outweighed by the adverse effects,

³ Schedule 2 Part 3 of the Town and Country Planning (General Permitted Development) (England) Order 2015.

⁴ Council ref: 18/01818/PACU6.

when assessed against the national decision-making policies in the Framework. Accordingly, the proposed development would not be sustainable development within the meaning of the Framework.

22. Drawing the above together, the proposed development would conflict with the development plan and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it.
23. For the reasons given above the appeal should be dismissed.

H Marriott

INSPECTOR